



AI Act Navigator

Readiness checklist

FOR TEAMS THAT BUILD OR USE AI

Get AI Act-ready, *one step at a time.*

A plain-English checklist that takes your organisation from “does the EU AI Act even apply to us?” to a documented, defensible compliance plan. Three tracks inside: providers, deployers, and a lighter path for SMEs.

HOW TO USE THIS CHECKLIST

The EU AI Act applies in phases and scales its duties with risk. This guide walks you through it in the order that actually works: confirm scope and risk tier, pick the path that matches your role, then work the matching checklist. Tick as you go. Where the law is genuinely unsettled — like the proposed Digital Omnibus postponement — we say so.

Guidance to help you orient, not legal advice. Verify against the official sources on the final page before you rely on a date or duty.

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00

The EU AI Act in 90 seconds

What the law is, and the four tiers everything falls into.

A calm, ordered path through the *EU AI Act*.

If someone has told you your AI system might be “high-risk”, or you simply need to know whether the EU AI Act applies to you, start here. The Act — Regulation (EU) 2024/1689 — is the world’s first comprehensive law on artificial intelligence. It takes a **risk-based approach**: every AI system falls into one of four tiers, and your duties scale with the tier and with your role.

THE TWO QUESTIONS THAT DECIDE EVERYTHING

Which tier? Prohibited, high-risk, limited (transparency) or minimal. **Which role?** Provider (you build or brand the AI) or deployer (you use it under your authority). The tier sets the obligations; the role decides who carries them. General-purpose AI (GPAI) models sit on a separate track.

It reaches beyond the EU

You can be in scope even with no EU office. The Act applies if you place an AI system on the EU market, if you are established in the EU, or simply if the **output** of your AI is used in the EU. That “output used in the Union” trigger gives it broad, GDPR-like extraterritorial reach.

The numbers worth remembering

2 Aug 2026

Most high-risk and
transparency obligations
apply

€35m / 7%

Top fine, of worldwide annual
turnover, for a prohibited
practice

4 tiers

Prohibited · high-risk · limited
· minimal

THE RULES ARE STILL MOVING

A “Digital Omnibus on AI” reached a **provisional political agreement on 7 May 2026** that would postpone the high-risk (Annex III) deadline from 2 August 2026 to **2 December 2027**, push Annex I product rules to 2 August 2028, and add a new prohibition. It is **not yet law** — until it is adopted and published, the 2 August 2026 dates remain the legal default. The prohibitions and AI literacy duty (since 2 Feb 2025) and the GPAI and penalty rules (since 2 Aug 2025) are already in force and are not affected.

01

Confirm scope and risk tier

Before you build any controls, place each system in a tier and a role.

Which tier is your AI, and *what is your role?*

Most wasted effort comes from skipping this step. Place each AI system into one of the four tiers, then decide whether you are its provider or its deployer. Many of your systems will turn out to be minimal-risk — which is a valid and common answer.



TIER 1 **Prohibited**

Banned outright under Article 5 (e.g. social scoring, manipulative techniques, untargeted facial-image scraping). In force since 2 February 2025.

TIER 2 **High-risk**

AI that is a safety component of an Annex I product, or used in one of the 8 Annex III areas. The strictest obligations.

TIER 3 **Limited (transparency)**

Transparency duties under Article 50: tell people they are dealing with AI; label deepfakes and AI-generated content.

TIER 4 **Minimal**

Everything else (spam filters, AI in games). No mandatory duties; voluntary codes of conduct encouraged.

Know your role for each system

PROVIDER

You build or brand it

Develops the AI system or GPAI model, or puts it on the market under its own name. Carries the fullest obligations.

DEPLOYER

You use it

Uses an AI system under its own authority, in a professional capacity. Lighter but real duties (Article 26).

IMPORTER / DISTRIBUTOR

You bring it to market

Brings a non-EU provider's system to, or makes it available on, the EU market. Must check the provider did its part.

WATCH OUT

Re-classification (Art. 25)

Put your name on a high-risk system, or substantially modify it, and you become its provider with the full duties.

Scope and tier checklist

- ☐ **List every AI system you develop, sell, or use.** Include AI features inside SaaS tools — an AI assistant or scoring function makes you a deployer of that system.
- ☐ **Confirm the EU nexus for each.** Placed on the EU market, used in the EU, or its output used in the EU. A company with no EU office can still be in scope.
- ☐ **Assign a tier to each: prohibited, high-risk, limited or minimal.** For high-risk, check both routes: Annex I product safety components and the 8 Annex III areas.
- ☐ **Record your role for each: provider, deployer, importer or distributor.**

THE HIGH-RISK FILTER (ARTICLE 6(3))

An Annex III system is **not** automatically high-risk if it only performs a narrow procedural task, improves the result of a prior human activity, or does preparatory work — and does not materially influence the outcome. But this exception **never applies if the system profiles people**. When in doubt, treat it as high-risk and document why.

PROMPT TO DRAFT YOUR AI INVENTORY

You are helping me build an EU AI Act inventory. For the AI system [name + what it does], used by [team], propose: (1) the likely risk tier with a one-line justification, (2) whether we are the provider or deployer, (3) the Annex III area if any, and (4) the three biggest open questions I should resolve before relying on this classification.

02

Choose your path

The work is genuinely different by role and size.

Pick the path that fits, *then work it.*

Many organisations are both a provider of some systems and a deployer of others — that is normal. Run each system through the path that matches its role. Whatever the path, compliance breaks into the same three moves.

1

Classify

Place each system in a tier and confirm your role. This single step decides everything that follows — and rules many systems out as minimal-risk.

2

Meet the obligations

Build the controls your tier and role require: risk management, documentation, human oversight, transparency, AI literacy — the substance of compliance.

3

Demonstrate and monitor

For high-risk: conformity assessment, the EU declaration of conformity, CE marking and registration. Then post-market monitoring and incident reporting.

Start here, whoever you are

HANDS-ON · THIS WEEK

AI literacy (Article 4) is **already in force** — since 2 February 2025 — for **every** provider and deployer, for **all** AI systems, not just high-risk ones. If you have not yet documented training for the people who use AI on your behalf, that is the one obligation to start on now.

The three tracks

TRACK A · PROVIDER

Heaviest for high-risk

Risk management, documentation, conformity assessment and CE marking before you go to market. Chapter 03.

TRACK B · DEPLOYER

Use it responsibly

Use as intended, assign human oversight, monitor, and inform the people affected (Article 26). Chapter 04.

TRACK C · SME AND MINIMAL-RISK

Smaller organisations and minimal-risk systems get a proportionate path: start with the in-force duties (no prohibited systems; AI literacy), keep an inventory, and scale effort to genuine risk. For SMEs and start-ups, fines are capped at the **lower** of the percentage or the fixed amount, and authorities must consider your size.

03

The provider checklist

For organisations that build or brand the AI.

If you build it, you carry *the full duties*.

For a high-risk system, a provider carries the fullest set of duties (Chapter III of the Act). Work them in order; the article references point you to the source.

Build the core controls

- ☐ **Set up a risk-management system across the lifecycle.** Article 9.
- ☐ **Govern your data: relevant, representative training, validation and test data.** Article 10.
- ☐ **Write the technical documentation (Annex IV) and enable automatic logging.** Articles 11–12.
- ☐ **Provide clear instructions for use, and design for human oversight.** Articles 13–14.
- ☐ **Engineer for accuracy, robustness and cybersecurity.** Article 15.
- ☐ **Operate a quality-management system.** Article 17.

Demonstrate conformity

- ☐ **Run the conformity assessment — self-assessment, or via a notified body where required.** Article 43.
- ☐ **Draw up the EU declaration of conformity and affix the CE marking.** Articles 47–48.
- ☐ **Register the system in the EU database for high-risk AI.** Article 49.
- ☐ **If you are outside the EU, appoint an authorised representative in the Union.** Article 22.

Keep it compliant after launch

- ☐ **Run post-market monitoring and report serious incidents.** Articles 72–73.
- ☐ **Take corrective action and cooperate with authorities when asked.** Articles 20–21.
- ☐ **Ensure AI literacy for your staff and operators.** Article 4.

IF YOU PROVIDE A GPAI MODEL

All GPAI providers: keep technical documentation, give downstream providers what they need, publish a training-data summary and a copyright policy (Article 53). If your model has **systemic risk** — training compute above 10^{25} FLOP — also evaluate and red-team it, mitigate systemic risk, report incidents and secure it (Article 55). The GPAI Code of Practice is the practical way to show compliance for now.

04

The deployer checklist

For organisations that use AI built by others.

Lighter duties, *but real ones*.

Deployer duties for a high-risk system are lighter than a provider's, but real (Article 26). Limited-risk systems carry only the transparency duties; minimal-risk systems carry none.

Use it responsibly (high-risk, Article 26)

- ☐ Use the system strictly in line with the provider's instructions for use.
- ☐ Assign human oversight to competent, trained, authorised people.
- ☐ Make sure any input data you control is relevant and representative.
- ☐ Monitor operation; suspend use and inform the provider or authority if risks arise.
- ☐ Keep the system's logs for at least six months.

Inform the people affected

- ☐ Tell workers and their representatives before deploying a high-risk system in the workplace.
- ☐ Inform people who are subject to decisions made or supported by the system.
- ☐ Carry out a Fundamental Rights Impact Assessment if you are a public body, or you use the system for credit scoring or insurance pricing. Article 27.

Limited-risk transparency (Article 50)

- ☐ Tell users when they are interacting with an AI system, such as a chatbot.
- ☐ Disclose and label deepfakes and AI-generated or manipulated content.

EVERYONE, EVERY TIER

Ensure AI literacy for the people who use AI on your behalf (Article 4) — in force since 2 February 2025 — and keep an AI inventory so you can see every system, its tier and its owner at a glance. A free inventory template is at aiact-navigator.com/ai-inventory.

PROMPT TO SCOPE A VENDOR'S AI FEATURE

A SaaS tool we use, [product], has added an AI feature that [does X]. Acting as an EU AI Act analyst, tell me: are we the deployer of this system? What is its likely risk tier? Which Article 26 / Article 50 duties would apply to us, and what three questions should we put to the vendor?

05

Dates, penalties and mistakes

The reference tables to keep on your desk.

What applies, and when.

DATE	STATUS	WHAT APPLIES
2 Feb 2025	In force	Prohibited practices (Art. 5) and the AI literacy duty (Art. 4)
2 Aug 2025	In force	GPAI model rules, governance (AI Office), and penalties
2 Aug 2026	Upcoming	Most high-risk (Annex III) obligations and Article 50 transparency
2 Aug 2027	Upcoming	High-risk AI in Annex I regulated products; pre-existing GPAI models

Proposed (not yet law): the Digital Omnibus would move the Annex III high-risk date to 2 December 2027 and Annex I to 2 August 2028. Confirm the current position before you rely on a date.

Penalties at a glance

BREACH	MAXIMUM FINE — THE HIGHER OF
Prohibited practice	€35,000,000 or 7% of worldwide annual turnover
Other obligations	€15,000,000 or 3% (incl. high-risk, transparency, GPAI)
Incorrect information	€7,500,000 or 1% supplied to authorities or notified bodies

KEEP THIS IN MIND

The four risk tiers are not optional labels — they decide which of these fines you are exposed to. A prohibited system is the only one that can trigger the 7% band, which is why the very first thing to rule out is whether any system you build or use falls under Article 5.

Five mistakes to avoid

- ☐ **Assuming "we don't build AI, so the Act doesn't apply".** If you use AI features in everyday tools, you are a deployer with real duties.
- ☐ **Ignoring the in-force duties while waiting for 2026.** Prohibitions and AI literacy already bind you today.
- ☐ **Treating ISO 42001 certification as full AI Act compliance.** It is strong governance, but on its own gives no presumption of conformity.
- ☐ **Assuming a US or non-EU base puts you out of scope.** If your AI's output is used in the EU, the Act can still reach you.
- ☐ **Building a programme you cannot show.** Document your classification, decisions and controls. Defensibility is the point.

06

The master checklist

Everything on one page. Pin it to the wall.

The whole journey, *in eight ticks*.

CLASSIFY

- ☐ Inventory every AI system you build or use, and confirm the EU nexus.
- ☐ Assign a tier and your role for each.

COMPLY NOW

- ☐ Confirm no system is a prohibited practice (Art. 5).
- ☐ Document AI literacy training for everyone using AI (Art. 4).

BUILD THE CONTROLS

- ☐ Provider: risk mgmt, data, docs, oversight, robustness (Arts. 9–17).
- ☐ Deployer: use as intended, oversight, monitoring, notices, FRIA (Arts. 26–27).

DEMONSTRATE AND MAINTAIN

- ☐ High-risk: conformity assessment, CE marking, registration (Arts. 43–49).
- ☐ Monitor, report incidents, and track the changing deadlines.

STAY CURRENT

The rules keep moving. We'll tell you when.

The AI Act Brief is a free, plain-English update from AI Act Navigator. We watch Brussels and the AI Office so you don't have to: what changed, what it means, and what to do next. Start with the free Risk-Tier Classifier and Obligations Checker, then subscribe at aiact-navigator.com.

SOURCES

1. Regulation (EU) 2024/1689 (the EU AI Act), consolidated text, EUR-Lex.
2. European Commission — Regulatory framework on AI, and the EU AI Office.
3. AI Act Explorer (artificialintelligenceact.eu): Articles 4, 5, 6, 26, 27, 50, 53, 55, 99, 113; Annex III.
4. Council of the EU press release, AI Act simplification (Digital Omnibus), 7 May 2026.

Guidance, current as of 10 June 2026. Not legal advice. Verify dates and detail against the official sources above before relying on them — especially the proposed Digital Omnibus changes, which were not yet law at the time of writing.



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Find your way through the *EU AI Act*.

Free tools, plain-English guides and always-updated deadlines at aiact-navigator.com